

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE DE-ANNEXING FROM THE CITY OF CHEYENNE, WYOMING, THE SOUTH ½ OF TRACTS 105 AND 106, SUNNYSIDE ADDITION, FOURTH FILING, LARAMIE COUNTY, WYOMING, PREVIOUSLY KNOWN AS THE 4204 CHARLES ANNEXATION (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF MONROE AVENUE AND CHARLES STREET).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne finds as follows:

- a. That William P. Pendley, Elisabeth Y. Pendley, Luke T. Pendley, and William P. Pendley, III, owners of a parcel of real property located at 4204 Charles Street, Cheyenne, Wyoming, being the South ½ Tracts of 105 and 106, Sunnyside Addition, Fourth Filing, and situated in a portion of Section 27, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, have petitioned, which petition is attached hereto as Exhibit A and fully incorporated herein by reference, the Governing Body of the City of Cheyenne to de-annex the real property described herein pursuant to provisions contained in W.S. §15-1-421; and
- b. That the parcel proposed for de-annexation is depicted and described on the annexation map associated with Ordinance # 4038, which map is attached hereto as Exhibit B and fully incorporated herein by reference; and
- c. That notice of the petition for de-annexation of the above-described parcel was published in the Wyoming Tribune-Eagle on June 13, 2015, as shown by the Affidavit of Publication, attached hereto as Exhibit C and fully incorporated herein by reference; and
- d. That the Board of County Commissioners of the County of Laramie, Wyoming, has considered the petition for de-annexation and has prepared a report on the impact of de-annexation of the parcel, which is attached hereto as Exhibit D and fully incorporated herein by reference, with said report concluding the impact to the County if the property is de-annexed is negligible; and
- e. That the de-annexation of the above-described parcel will not cause land remaining within the boundaries of the City of Cheyenne to no longer be contiguous with the rest of the City and will not create any area which is entirely within the City of Cheyenne, but which is not a part of the City of Cheyenne; and
- f. That the owners of the parcel sought to be de-annexed shall remain liable for any assessments incurred or levied while their property was within the boundaries of the City of Cheyenne and for any and all levies necessary to repay any indebtedness that was outstanding at any time their property was within the boundaries of the City of Cheyenne; and
- g. That dedicated rights-of-way, easements, streets, and other property or improvements dedicated to or owned by the City of Cheyenne, or which inure to the benefit of the public, are retained by the City and the public pursuant to W.S. § 15-1-421(d)(iv); and
- h. That the parcel proposed for de-annexation is currently zoned MR-2 Medium Density Residential by the City of Cheyenne.

- Section 2. That all of that certain parcel of land described in Exhibit B, attached hereto, be de-annexed from the City of Cheyenne, Laramie County, Wyoming, and shall no longer be a part thereof.
- Section 3. That the said parcel so de-annexed shall be zoned in accordance with zoning standards, rules and regulations of Laramie County, Wyoming.
- Section 4. That the City Clerk is directed to file an executed copy of this de-annexation ordinance and map (Exhibit B) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to remove said property from the official City Map.
- Section 5. That this ordinance shall be in full force and effect upon its approval, publication and the proper filing and recording of documents in the office of the Laramie County Clerk and Ex-Officio Register of Deeds.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune-Eagle

John M. Kuker
Scott A. Horner
Jeffrey M. Boldi
L. Cooper Overstreet
THE KUKER GROUP LLP
ATTORNEYS-AT-LAW
508 East Eighteenth Street
Cheyenne, Wyoming 82001
Attorneys for Petitioners

FILED
10:45 AM
JUN 09 2015
ME
OFFICE OF CITY CLERK

PETITION FOR DE-ANNEXATION

TO: THE HONORABLE MAYOR, RICHARD L. KAYSEN, AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF CHEYENNE, WYOMING.

COME NOW, Petitioners, William P. Pendley, Elisabeth Y. Pendley, William P. Pendley III, and Luke T. Pendley (hereinafter known as "Petitioners") by and through counsel, John M. Kuker and L. Cooper Overstreet of the Kuker Group LLP, and hereby state the following in support of their petition for de-annexation from the City of Cheyenne, Wyoming, in accordance with W.S. § 15-1-421:

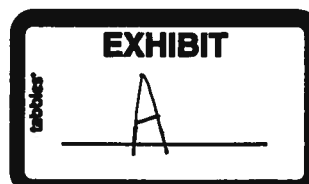
1. Petitioners are the co-owners of the residence known as 4204 Charles Street, Cheyenne, Wyoming, 82001, (the "Property") further described as:

Sunny Side Addition, Fourth Filing, South ½ of Tracts 105 and 106;
located in Section 27, Township 14 North, Range 66 West of the 6th P.M.
(Book 1610, Pg. 1794, 09-11-01)

A map showing the property to be de-annexed is attached hereto as "Exhibit A".

2. On March 14, 2014, a septic permit application to do repairs to the small wastewater system at the Property was denied.

3. At the time, Petitioners were told by government employees that an appeal would be futile. Based upon expressed oral and written assurances from government employees, including documentation on the official City map that shows "existing 8" water and 8" sewer lines on Monroe Ave that can be tap for use" (Linda Gunter, Development Specialist, May 15, 2014, Clearance From The Board of Public Utilities), and that these water and sewer lines were



located within seventy five (75) feet of the residence, Petitioners petitioned to have the Property annexed into the City. See Attached Exhibit B.

4. Petitioners followed the required procedures and paid the applicable fees to have the Property annexed into the City in order to be able to connect to City sewer and water systems as shown on the official City map.

5. On August 11, 2014, the application for annexation to the City was approved; unfortunately, Ordinance No. 4038 relied upon faulty and inaccurate information. Petitioners, the City Council, the County Planning Board, and the City Attorney were misled. In fact, there was no available City sewer and water services within seventy five (75) feet of this Property.

6. On August 21, 2014, Petitioners paid the required \$7,747.00 fee to the Board of Public Utilities for the Tap permits to connect to the city water and sewer lines.

7. Shortly thereafter Petitioners were informed that there are no water and sewer lines on Monroe Ave as shown on the official map and therefore, there were no water and sewer lines within seventy-five (75) feet of the residence as expressly promised both orally and in writing by government officials and representatives of the City and County. A promise upon which Petitioners relied.

8. The Board of Public Utilities refunded the fee for the Tap permits when it became obvious that the City map was incorrect and that no water and sewer lines were located on Monroe Avenue, within seventy-five (75) feet of the Property.

9. Petitioners, based upon faulty and incorrect assurances from the City and the County that water and sewer lines were readily available, annexed their property into the City, with the assurance that City water and sewer services were available within

seventy-five (75) feet of the Property on Monroe Avenue; however there are no available City sewer and water services.

10. Petitioners now find that they are within City limits, without any City sewer and water services but with an illegal small wastewater system.

11. Petitioners filed a hardship request to do repairs, if and when necessary, to the small wastewater system located on the Property; this hardship request was denied on September 16, 2014.

12. At the same time the hardship request was denied, Petitioners were threatened by the Cheyenne-Laramie County Health Department to "abate" the small wastewater system since it is illegal to have a small wastewater system within City limits according to City Ordinances.

13. Consequently, Petitioners then petitioned for an exception to the 201 Area Facilities Management Plan for their small wastewater system until such time as the sewer and water lines were laid on Monroe Avenue. The open ended waiver granted by government officials to the Developer of the Monroe Street property to lay the sewer and water lines has no time limits or restrictions. Therefore, Petitioners have no assurances that the requisite sewer and water lines will be laid in a timely manner.

14. Petitioners' request for an exception to the 201 Area Facilities Management Plan was subsequently denied by the Cheyenne City Council on December 8, 2014.

15. Petitioners have relied to their detriment on erroneous facts and misleading information that was supplied by government officials. The City Council, the County Planning Board, and the City Attorney were also misled; that is, they relied on the same misinformation

and granted Ordinance No. 4038 without the authority to do so, as Petitioner's application was based on faulty information. Moreover, both Petitioners and the City Council, the County Planning Board, and the City Attorney were misinformed and therefore mistaken as to a material fact that formed the basis for the petition and action by the City.

16. In order to place Petitioners in a position to repair the Property's small wastewater system if necessary while it waits for an indeterminate length of time for the sewer and water lines to be laid on Monroe Avenue and in order to have protection from any threatened government abatement proceedings while they wait, Petitioners request that the Property be de-annexed.

17. As required by W.S. § 15-1-421(e), the Property is not surrounded on all sides by the City; therefore, de-annexation of the Property will not create an area that is situated entirely within the City.

18. Pursuant to statute, Petitioners will publish a public notice of the petition, in a newspaper of general circulation in the affected municipality no more than ten (10) days after filing this Petition with the municipal clerk.

19. In addition, a copy of this petition will be provided to the County Commissioners of Laramie County.

WHEREFORE, Petitioners respectfully request that the City of Cheyenne grant this Petition for de-annexation and redraw the boundaries of the City so that the property described in Paragraph 1 of this petition is placed outside of the City Boundaries.

{Signature Pages to Follow}

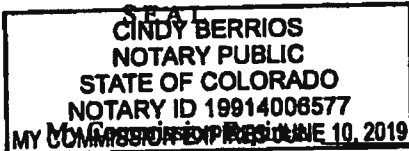
DATED this 15th day of May, 2015.



William P. Pendley
27453 Mildred Lane
Evergreen, CO 80439

STATE OF Colorado)
COUNTY OF Jefferson) ss.

Subscribed and sworn to before me this 15th day of May, 2015 by William P. Pendley. Witness my hand and official seal.




Notary Public

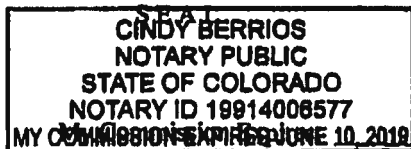
My Commission expires June 10th, 2019

DATED this 15th day of May, 2015

Elisabeth Y. Pendley
Elisabeth Y. Pendley
27453 Mildred Lane
Evergreen, CO 80439

STATE OF Colorado)
) ss.
COUNTY OF Jefferson

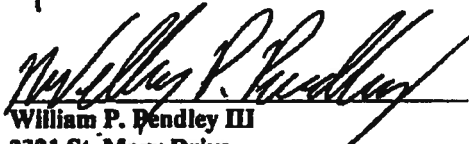
Subscribed and sworn to before me this 15 day of May, 2015 by Elisabeth Y. Pendley. Witness my hand and official seal.



Cindy Berrios
Notary Public

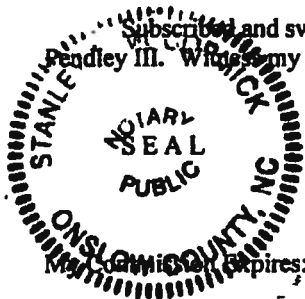
my commission expires June 10th, 2019

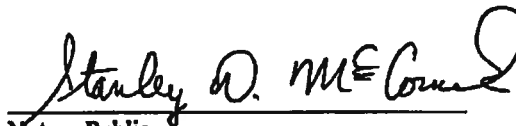
DATED this 8th day of May, 2015.


William P. Bendley III
2321 St. Mary Drive
Camp Lejeune, NC 28547

STATE OF North Carolina)
COUNTY OF Onslow) ss.

Subscribed and sworn to before me this 8th day of May, 2015 by William P. Bendley III. Witness my hand and official seal.




Notary Public

My Commission Expires: 18 Dec 2017

DATED this 23 day of 5, 2015

Luke T. Pendley
Luke T. Pendley
364 Third Avenue, Apt. 9
New York, NY 10016

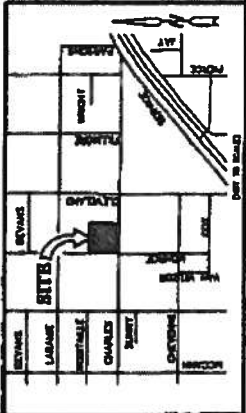
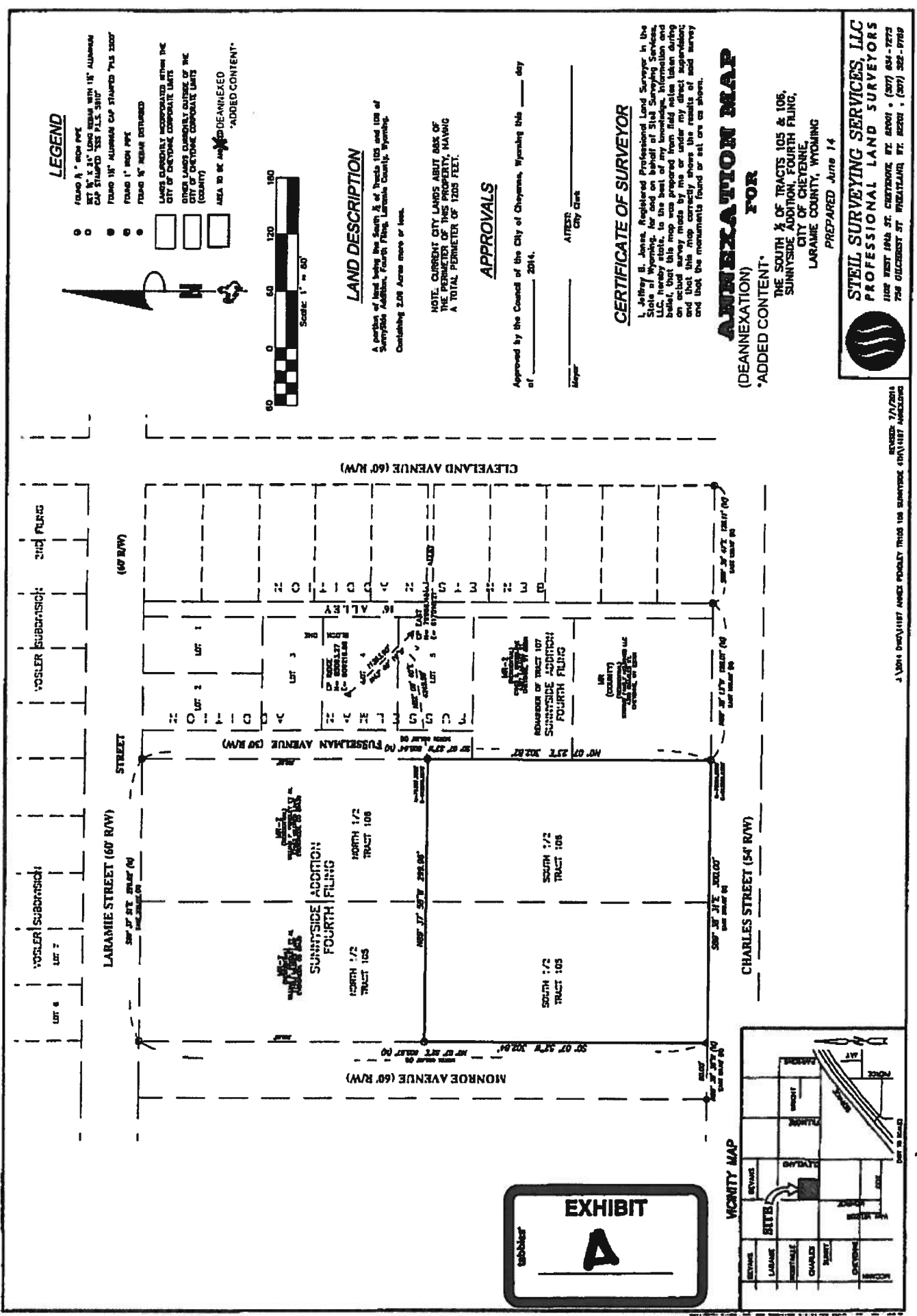
STATE OF New York)
COUNTY OF New York) ss.

Subscribed and sworn to before me this 23 day of May, 2015 by Luke T. Pendley. ~~Witness my hand and official seal~~

SEAL GRAHAM A ORR
Notary Public - State of New York
NO. 010R6282923
Qualified in Queens County
My Commission Expires May 28, 2017

[Signature]
Notary Public

My Commission Expires: May 28, 2017



J:\2014\06041187\ANNEX FOURTH TRUG 108 SUNNYSIDE 6/14/18\187 ANNEXATION

May 13 14 04:53p

PENDLEY

303-674-8092

p.2



DEVELOPMENT SERVICES - ANNEXATION - BOPU CLEARANCE

CLEARANCE FROM THE BOARD OF PUBLIC UTILITIES

This form, signed by a representative of the Board of Public Utilities, must accompany petitions to annex land into the City.

Please contact BOPU at 2416 Snyder Avenue, Cheyenne, WY 82001, 307-637-6460.

Legal description of requested annexation (attach additional sheet if necessary):

Sunny Side Addition, Fourth Filing, South 1/2 of Tracts 105 and 106;
located in Section 27, Township 14 North, Range 66 West of the 6th P.M.
in Laramie County, Wyoming
(Book 1610, Pg 1794, 09-11-01)

The owner, or a representative of the owner, requesting the annexation of the above property, has met with representatives of the Board of Public Utilities to discuss the provision of City water and sewer services to said property.

The Board of Public Utilities is satisfied that the applicant understands the requirements of the Board and hereby clears the application for submittal to the Development Office for processing.

BOPU use only:

Signed:

Jinda Quake

Title:

Development Specialist

Date:

May 15, 2014

Notes:

*there is existing 8" Water and 8" Sewer in
Monroe Ave that can be Tap for use.
After annexation is complete Tap Permit Fee for 2014
will be \$7,747.00 for Single Family*

BUILDING & DEVELOPMENT OFFICE
2101 O'Neil Avenue, Suite 202, Cheyenne, WY 82001
(Phone) 307-637-6352 • (Fax) 307-637-6366

EXHIBIT

B

LEGEND

- FOUND 3/4" IRON PIPE
- SET 3/4" x 24" LONG REBAR WITH 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5810"
- FOUND 1/2" ALUMINUM CAP STAMPED "P.L.S. 2560"
- FOUND 1" IRON PIPE
- FOUND 3/4" REBAR DISTURBED
- LANDS CURRENTLY INCORPORATED WITHIN THE CITY OF CHEYENNE CORPORATE LIMITS
- OTHER LANDS CURRENTLY OUTSIDE OF THE CITY OF CHEYENNE CORPORATE LIMITS (COUNTY)
- AREA TO BE ANNEXED



LAND DESCRIPTION

A portion of land being the South 1/2 of Tracts 105 and 106 of Sunnyside Addition, Fourth Flung, Laramie County, Wyoming. Containing 2.09 Acres more or less.

NOTE: CURRENT CITY LANDS ABOUT 88% OF THE PERIMETER OF THIS PROPERTY, HAVING A TOTAL PERIMETER OF 1205 FEET.

APPROVALS

Approved by the Council of the City of Cheyenne, Wyoming this _____ day of _____, 2014.

Attest: _____
City Clerk

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that I am a duly Licensed Professional Land Surveyor, that an actual survey made by me or under my direct supervision, and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

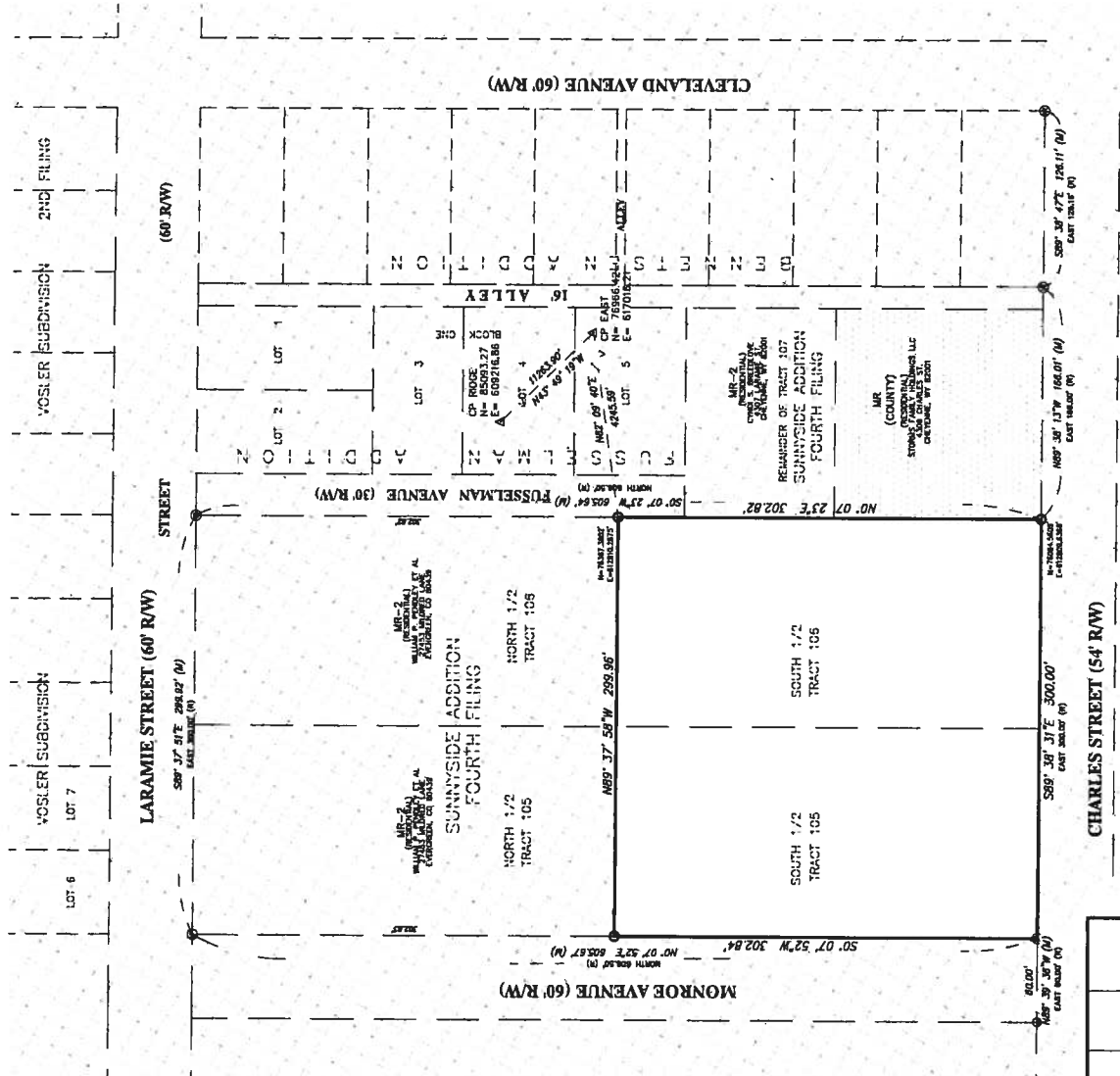
ANNEXATION MAP FOR

THE SOUTH 1/2 OF TRACTS 105 & 106,
SUNNYSIDE ADDITION, FOURTH FLUNG,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING

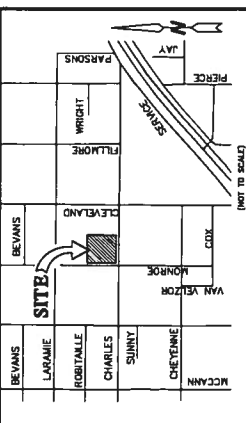
PREPARED June 14



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
1102 WEST 19th ST. CHEYENNE, WY. 82201 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789



VICINITY MAP



EXHIBIT

B

Proof of Publication

THE STATE OF WYOMING) ss.
County of Laramie

AFFIDAVIT

L.D. Catalano of said County of Laramie, being first duly sworn, deposes and says that he is Controller; or Faith Vroman, of said County of Laramie, being first duly sworn, deposes and says that she is the Secretary of the

Wyoming Tribune-Eagle

a newspaper printed and published in said County and State, and in the Capitol of said State; that the notice of which the annexed is a true copy, has been published in the said newspaper.

For One

Times, to wit:

June 13, 2015

and that the first publication of said notice was made in said paper bearing date

June 13, A.D. 20 15

and that the last publication of said notice was made in said paper bearing date

June 13, A.D. 20 15

Subscribed in my presence and sworn to before me by the aforesaid L.D. Catalano, Controller or Faith Vroman, Secretary.

this 3rd

Day of August, 20 15

My commission expires:



PETITION FOR DE-ANNEXATION NOTICE IS HEREBY GIVEN that pursuant to Wyoming Statute § 15-1-21, a petition for the de-annexation of certain real property consisting of 2.05 acres, located in Laramie County, Wyoming, has been filed with the City Clerk of Cheyenne, Wyoming, to de-annex the following described real property: Sunny Side Addition, Fourth Fliling, South ½ of Tracts 105 and 106, located in Section 27, Township 14 North, Range 66 West of the 6th P.M. (Book 3610, Pg. 1794, 09-11-01)

The map exhibit is available on the City Website, <https://www.cheyenne.wy.gov/development/development-office>, under the Services page or at the Development Office, 2103 O'Neil Avenue, Room 202 during normal business hours. For information about the de-annexation process, contact the Building Safety Department at 2101 Orin Ave, Room 202, Cheyenne, WY 82001. Telephone (307) 637-5265. DATED this 9th day of June, 2015.

ELISABETH PENDLEY, Petitioner
By: L. Cooper Overstreet #74956
THE KUNER GROUP LLP ATTORNEYS-AT-LAW
508 East Eighteenth Street
Cheyenne, Wyoming 82001
Telephone - 307-274-4444
Facsimile - 307-274-4443
Attorneys for Petitioner
June 13, 2015



LARAMIE COUNTY PLANNING & DEVELOPMENT DEPARTMENT

Planning • Building

July 28, 2015

Elizabeth Pendley
27453 Mildred Lane
Evergreen, CO 80439

Dear Ms. Pendley,

This letter is to inform you that the approval of a report assessing the impact of de-annexation as required by W.S. 15-1-421 (a) will be heard at the next Board of County Commissioners meeting scheduled on:

August 4, 2015: 3:30pm at 310 West 19th Street, Suite 310, Cheyenne, WY 82001.

Enclosed is a copy of the report that will be sent to members of the Board.

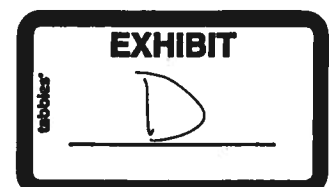
Please contact the Laramie County Planning and Development Office if you have any questions or are unable to attend this meeting.

Sincerely,

Brett Walker, AICP
Planning Manager

Enclosure

Cc: Kuker Group, LLC
City of Cheyenne





LARAMIE COUNTY PLANNING & DEVELOPMENT DEPARTMENT

Planning • Building

MEMORANDUM

TO: Laramie County Board of Commissioners

FROM: Brett Walker, Planning Manager

DATE: August 4, 2015

TITLE: Report on Petition for De-Annexation for Sunny Side Addition, 4th Filing: South ½ of Tracts 105 and 106, Laramie County, WY.

EXECUTIVE SUMMARY

Kuker Group LLP, on behalf of Pendley, has submitted a de-annexation request to the City for a parcel that was recent annexed on or around August 11, 2014. This annexation relied on faulty information regarding the location of water and sewer within Monroe Avenue. The nearest sewer hookup is actually located within 300' of the property to the NNW (Laramie and Monroe), not directly in front of the residence. Once annexed, the continued use of the septic became illegal. Per State statute, the Board of County Commissioners are required to prepare a report on the impact of the de-annexation. This document will serve as that report.

BACKGROUND

The property is part of Sunnyside Addition, Fourth Filing, platted in 1945. Various replats have occurred over the last 70 years. Much of what was Sunnyside Addition, fourth Filing has been annexed to the City as it has grown but many parts remain in the County. The general area of the request has numerous County pockets within it. It would be difficult to develop this property more intensely than what it currently is (a single family home) without it being an addition to the City.

The attached petition provides the background, specific circumstances, and reasoning that have led to the de-annexation request.

Pertinent Statutes

W.S. 15-1-421 (a):

Any landowner within a city or town may petition the governing body of the city or town to have his land or a portion of it de-annexed and the boundaries of the city or town redrawn so their land is outside the city or town boundaries. The

landowner shall file the petition with the clerk of the affected city or town and shall provide a copy of the petition to the county commissioners of the affected county. The county commissioners shall, within sixty (60) days, prepare a report on the impact of the de-annexation. The affected city or town may not take any action on the petition for de-annexation until after the sixty (60) day period. The commissioners may establish rules and regulations for the area to be de-annexed which are consistent with county land use plans and zoning ordinances.

DISCUSSION

The impact on County services related to this de-annexation proposal is minimal, especially given that it was recently annexed, and cannot be developed to more intense uses without connection to the City and the services it provides.

The following are comments received:

County Planning and Zoning:

The zoning on the property is currently MR-2 but will revert to MR after the de-annexation. The property would be subject to County regulations and be processed through the County Planning Department. Since the fees charged by the County are designed to reflect the services provided, no impact is anticipated.

The property would be subject to County building codes and fees. Since no development has been proposed, and the development of more intensive uses severely constrained, the impact of future buildings would be minimal and would require a 201 Agreement should the septic fail, and the single family residential be desired to continue. Building fees are designed to offset expenditures related to providing service, so again, it is anticipated that there will be no impact to the County.

It should be noted that the applicants for the de-annexation of this parcel also own the annexed parcel to the north that is adjacent the existing sewer system.

Board of Public Utilities:

Due to unanticipated economic development, the developer was unable to continue the development of the infrastructure of Monroe Ave., therefore the water and sanitary sewer mains currently do not exist.

All construction, installation or modification allowed under the State of WY DEQ permit shall be completed by November 14, 2019 for this project. The BOPU recommends that De Annexation of Sunnyside Addition 4th Filing, S 1/2 of tracts 105 & 106 be approved.

Environmental Health Department:

Wyoming State Statutes

Laramie County Small Wastewater System Regulations

201 Area Facility Management Plans

WY State Statutes 15-1-421(e) say that: "No de-annexation shall create an area which is situated entirely within the municipality but is not a part of the municipality". This property (area) will be entirely within the municipality.

This office has not commented on or even seen a report completed by the Laramie County Commissioners (as required by State Statute 15-1-421 (a) on the impact of this de-annexation. (**NOTE**: *That is the purpose for which a comment was extended to Environmental Health*)

An engineering report showing that a small wastewater system will not further impact elevated nitrate levels in this area would be useful in protecting the public's health.

Cheyenne public sewer is located adjacent to the owners property on Laramie St. Cheyenne Public sewer is also located within 300' of the property to the NNW (Laramie and Monroe) and to the ESE (Charles and Cleveland)

Sunnyside Subdivision has a history of high nitrates in the water table and small wastewater systems contribute to elevated nitrate levels.

This property is still within the 201 Area and contiguous to the municipal boundary and will require that an exception be granted by both the Cheyenne City Council and Laramie County Commissioners prior to a permit being issued for a new small wastewater system.

CONCLUSION

Based on the comments received and the ability of County agencies to provide adequate service to this property, the recent date of the annexation, and the fact that more intense development is severely constrained until the property is hooked into City infrastructure, the impact to the County if this property is de-annexed from the City of Cheyenne is negligible.

PROPOSED MOTION

I move to adopt this staff memorandum as the Board of Laramie County Commissioners official impact report for the proposed Pendley de-annexation for property described in Attachment A of this memorandum.

Attachments

Attachment A: Applicant Letter and de-annexation petition (including map)

Attachment B: Staff Aerial Map